

Objection and Response to Verified Petition for: (1) Removal of Successor Trustee for Abandonment (2) Appointment and Confirmation of Successor Trustee; (3) Delivery of Trust Property; (4) Bond Waiver or, in the Alternative, Provisional Bond

PREGRANT ORDER

This matter was continued from January 7, 2026, March 23, 2026, May 13, 2026, and June 25, 2026, to allow the petitioner to address issues with the petition and to allow the trustee to file an objection. The court has reviewed the objection filed July 2, 2026. Nothing has been filed by the petitioner to address the issues with her petition.

The court on its own motion continues this hearing to November 5, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. The copy of the trust attached to the petition indicates that the trust is governed by Oklahoma law, and the petition states the current trustee resides in Oklahoma. It is unclear how the court has jurisdiction over the trustee or the administration of the trust given Probate Code sections 17002 through 17205. The petition and declaration state that, because the beneficiary lives in California, this gives this court jurisdiction over this proceeding which does not meet the requirements of Probate Code section 17005. The petitioner shall explain why the court should not sustain the objection and dismiss this petition.
2. There is no Proof of Service showing that the Supplemental Declaration was served on all interested persons. There is a proof of service for the initial petition and notice of the hearing, but not the supplemental declaration.

LINE

8

**IN THE MATTER ESSIE MAE WEEKS
PR26-00028**

First Amended Petition to Compel Production of Trust Documents and Accounting

PREGRANT ORDER

This matter was continued from June 25, 2026, to allow the petitioner to address issues with the amended petition. Nothing has been filed since the last hearing.

The court on its own motion continues this hearing one final time to November 5, 2026, at 9:30 a.m. in Department 22. The petitioner is cautioned that if she does not resolve the following issues with her petition, the court may dismiss the petition:

1. There is no Proof of Service on file showing all those entitled to notice have received either the original petition or the amended petition per Probate Code section

17203. There is a Proof of Substituted Service but it is unclear whether the documents were served at a valid address for the respondents or the relationship of the person who received the documents to the respondents. The court notes that the trustees were represented by counsel in the original trust matter and there is no Proof of Service showing notice was given to counsel.

2. The Declaration filed March 9, 2026, states that because the petitioner believes that the scholarship fund was created using trust funds, the court should be able to review the trust documents and accounting. The declaration also appears to challenge the trust amendment which created the scholarship fund based on the trustor's possible health issues (page 2, lines 18-19). The petitioner should have brought her challenge or her questions about the trustor's capacity during the original litigation brought by Gloria Weeks in 2020 (case number FPR050261). The petitioner shall explain why she did not join in the litigation brought by Gloria Weeks.

LINE

9

**IN THE MATTER OF GERTIE MARIE WILLIAMS
PR26-00036**

Verified Petition Under Probate Code §850 For Accounting, Determination of Property Ownership, and Review of Fiduciary Conduct

PREGRANT ORDER

The court continued this matter from March 4, 2026, May 13, 2026, and June 25, 2026. Nothing has been filed to resolve the issues since the last hearing. The court notes that the petitioner retained new counsel on July 16, 2026.

The court on its own motion continues this hearing one final to November 4, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing the petitioner shall resolve the following issues:

1. The petitioner used an incorrect Notice of Hearing form (DE-120). The petition seeks relief under Probate Code § 850 which requires the use of the Notice of Hearing to Determine Claim to Property (DE-115).
2. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 4544, including the attorney-in-fact and the principal.
3. There is no Proof of Service showing all those entitled to notice have received it per Probate Code section 850.
4. The petitioner is not listed as a current trustee of the trust. The settlors/original trustees are both alive. The petitioner shall explain her standing to bring a petition